

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

JUDGE PHILIP A. BRIMMER

COURTROOM MINUTES

Courtroom Deputy: Kathy Preuit-Parks
Court Reporter: Janet Coppock and
Suzanne Claar

Date: April 12, 2010
Time: 6 hours and 53 minutes

CASE NO. 08-cv-00495-PAB-MJW

Parties

Counsel

**REGISTRY SYSTEMS
INTERNATIONAL, Ltd.,**

Terrence Gill
Joseph Bronesky

Plaintiff,

vs.

**VINCENT HAMM, KAREN HAMM,
AIM HIGH!, INC., and
1 DOMAIN SOURCE, LTD.,**

Defendants and Third Party
Plaintiffs,

vs.

Kenzo Kawanabe
Elizabeth Smith Titus

**EDWARD J. SWEENEY, CHARLES A.
SWEENEY, and CAPITAL
NETWORKS, PTY., LTD.,**

Third-Party Defendants.

Terrence Gill
Joseph Bronesky

TRIAL TO JURY - DAY ONE

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8:05 a.m. COURT IN SESSION

APPEARANCES OF COUNSEL. Third Party Defendant Edward Sweeney and Defendants Third Party Plaintiffs Vincent Hamm and Karen Hamm are present.

Court and counsel discuss pending pretrial matters.

ORDERED: Defendants and Third-Party Plaintiffs' Motion for Leave to Submit Responses to Plaintiff and Third Party Defendants' Amended Trial Brief (Doc #349), filed 4/11/10 is **GRANTED**.

8:30 a.m. COURT IN RECESS

8:50 a.m. COURT IN SESSION

Court introduces itself and staff.

Counsel introduces themselves and reads their lists of witnesses.

8:55 a.m. Voir dire begins.

10:00 a.m. Voir dire by Mr. Gill.

10:10 a.m. Voir dire by Ms. Titus.

10:23 a.m. Voir dire by the Court.

10:25 a.m. COURT IN RECESS

10:41 a.m. COURT SESSION

PLAINTIFF'S PEREMPTORY CHALLENGES:

1. 100179077
2. 100166423
3. 100168256

DEFENDANT'S PEREMPTORY CHALLENGES:

1. 1001168859
2. 1001160828
3. 100186190

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JURORS SEATED TO TRY THE CASE:

- 1. 1001189645**
- 2. 1001181714**
- 3. 1001187102**
- 4. 1001187710**
- 5. 1001185404**
- 6. 1001199570**
- 7. 1001179895**
- 8. 1001161611**
- 9. 1001164885**

10:50 a.m. Jurors sworn.

Introductory jury instructions read.

11:09 a.m. Opening statements by Mr. Gill.

11:44 a.m. Opening statements by Mr. Kawanabe.

12:11 p.m. COURT IN RECESS

1:40 p.m. COURT IN SESSION

Jurors are present.

ORDERED: Plaintiff's exhibits 1, 7, 9, 10, 11, 14, 15, 24, 58, 63, 65, 85, 101, 102, 132, 169, 176, 181, 193 through 217 (inclusive), 223, 227 through 229 (inclusive), 233, 235, 236, 238, 239, 319, 540, 541, 562, 563, 569 through 572 (inclusive) offered and ADMITTED by stipulation.

ORDERED: Defendants' exhibits A-1 through A-4 (inclusive), A-6, A-8, A-9, A-14, A-16, A-17, A-19, A-20, A-29 through A-40 (inclusive), A-43 through A-48 (inclusive), A-51 through A-54 (inclusive), A-57 through A-63 (inclusive), A-65, A-67, A-69, A-73 through A-75 (inclusive), A-82, A-95, A-97 through A-99 (inclusive), B-1, B-3, B-6 through B-9 (inclusive), B-11 through B-17 (inclusive), B-26 through B-29 (inclusive), B-32, B-45, and B-46 offered and ADMITTED by stipulation.

1:51 p.m. Direct examination of plaintiff's witness Edward Sweeney by Mr. Gill.

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Plaintiff's **exhibit 2** identified and offered. Objection by Mr. Kawanabe.

2:39 p.m. Bench conference to address Mr. Kawanabe's objection. Objection overruled.

ORDERED: Plaintiff's **exhibit 2** is ADMITTED.

Plaintiff's **exhibit 3** identified, offered and ADMITTED, over objection by Mr. Kawanabe.

Plaintiff's **exhibit 8** identified and offered. Objection by Mr. Kawanabe.

3:10 p.m. COURT IN RECESS

3:28 p.m. COURT IN SESSION

Mr. Kawanabe advises that Mr. Gill has agreed to substitute plaintiff's exhibit as a complete document and withdraws his objections.

ORDERED: Plaintiff's **exhibit 8** is ADMITTED.

Plaintiff's **exhibit 559** identified, offered and ADMITTED.

Defendants' **exhibit A-94** identified, offered and ADMITTED.

Plaintiff's **exhibit 110** identified, offered and ADMITTED.

Plaintiff's **exhibit 584** identified, offered and ADMITTED.

Plaintiff's **exhibit 147** identified, offered and ADMITTED.

Plaintiff's **exhibit 471** identified, offered and ADMITTED.

Plaintiff's **exhibit 166** identified, offered and ADMITTED.

Plaintiff's **exhibit 538** identified, offered and ADMITTED.

Plaintiff's **exhibit 581** identified, offered and ADMITTED.

Plaintiff's **exhibit 478** identified, offered and ADMITTED, after voir dire by Mr. Kawanabe.

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Plaintiff's **exhibit 150** identified, offered and ADMITTED.

Plaintiff's **exhibit 173** identified, offered and ADMITTED.

Plaintiff's **exhibit 432** identified, offered and ADMITTED.

Plaintiff's **exhibit 334** identified, offered and ADMITTED.

Plaintiff's **exhibit 4** identified, offered and ADMITTED over objection.

Plaintiff's **exhibit 5** identified, offered and ADMITTED over objection.

Mr. Kawanabe objects to Mr. Gill's line of questioning on the grounds of foundation.
Objection sustained.

4:52 p.m. Bench conference. Mr Kawanabe indicates a stipulation has been reached and he withdraws his objection.

Court advises the jury and withdraws its sustaining of Mr. Kawanabe's objection.

Plaintiff's **exhibit 604** identified, offered and ADMITTED.

5:00 p.m. Jurors excused.

5:05 p.m. COURT IN RECESS

Total in court time: 413 minutes

Hearing continued